

## RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on May 19, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: B.B.B. (hereinafter, the complainant) exercised the right of Erasure against A.A.A. (hereinafter, the respondent) without their request receiving the legally established response.

The complainant states that on March 28, 2023, they received a visit from a salesperson of the entity BEST HEALTH, who requested their signature on a contract related to a chair they had purchased years ago. They indicate that personal and payment data related to the contract were requested, providing them with a contract without a reference number and not signed by any representative of the respondent, with the signature of A.A.A. and their NIF number, noting that their data was collected without prior information.

On April 3, 2023, they sent an email requesting withdrawal and exercising the right to cancel their data.

On April 5, 2023, having not received an acknowledgment of receipt, they sent a new email.

Subsequently, they sent the same request by certified postal mail, receiving the certificate returned due to absence on May 5, 2023.

They provide a copy of the contract and emails sent to the respondent withdrawing from the contract and exercising the right to cancel all personal data of the complainant held by the respondent.

SECOND: On September 27, 2023, this Agency resolves regarding the complaint filed by the complainant and their unattended erasure request. It concludes by archiving the complaint as follows:

"...In this case, considering that the complaint was filed with this Agency on May 19, 2023, pursuant to the provisions of section 5 of Article 65 of the LOPDGDD, it is appropriate to process it in accordance with the provisions of Title VIII of the aforementioned regulation, without prejudice to the Agency's authority to subsequently and expressly archive the complaint. However, once the reasons presented by the respondent, which are in the file, have been analyzed, in light of the actions taken, it is considered that the complainant's request has been addressed in accordance with personal data protection regulations, and there is no need to urge the adoption of additional measures since the requested right has been attended to, thus leading to the archiving of the complaint.

For all the above, by the Director of the Spanish Agency for the Protection of Data, IT IS AGREED:

FIRST: TO ARCHIVE the complaint..."

THIRD: The complainant, in total disagreement with the resolution, submits a motion for reconsideration, which is resolved on March 20, 2024, favorably, leading to the current rights procedure with the following arguments:

"On 10/05/23, I received notification from this agency stating that they proceed to ARCHIVE the above-mentioned file, as the respondent has addressed the complainant's request according to personal data regulations???"

It is evident that this agency has not analyzed and has overlooked the data protection regulations in the complaint filed by me, paying more attention to a document full of inconsistencies and falsehoods than to the real data provided by me, namely:

How can they claim to have addressed my request if they ignored 3 emails sent by me and a certified letter that was returned due to absence? They only acted upon request from the AEPD through an incomprehensible and totally out-of-place letter; how can such a document be credible?

They state that they have not sold me anything due to my "delinquency" and that I am immediately removed from their files; the relaxation chair was SOLD to me by that company without any problem years ago, and recently they sent a SALESPERSON to my home, who SOLD me a magnetic card, taking all kinds of personal and banking data with a contract that makes no mention of data protection, and taking €50 as a deposit against the total to be paid (€904.96).

According to that person, they never sold me anything due to my "delinquency"(?). They also state that

their “documents” have a legal language and are completely understandable, when nothing is stated about data protection. (THE CONTRACT IS ATTACHED)

That is to say, they still had all my personal data when they claim that it had been removed from their files due to my “delinquency” a long time ago.

This last visit from the salesperson is the reason for the complaint filed with the agency, not for the purchase of the chair. It is also noteworthy that despite “having deleted all my data,” I received the letter of disrepute, and not to address my...”

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request, in my email (which is why I was not responding to my request emails) ...

Although it is not relevant to the claim, but rather to my person, I attach the ASNEF-EQUIFAX report, in which the defamation regarding my "delinquency" and the dubious credibility of such a letter is made clear.”

FOURTH: In light of the events that occurred on March 21, 2024, the original claim is again forwarded to the responding party, along with the appeal for reconsideration submitted by the claimant and the resolution of said appeal, so that within a period of fifteen business days they may present any allegations they deem appropriate.

The notification of the transfer of the documentation is returned by the Postal Service for ABSENT IN DELIVERY; the documentation is resent on two more occasions, dated March 17 and May 14, 2024, respectively, which are again returned by the Postal Service for ABSENT IN DELIVERY.

On July 8, 2024, notification was made through an announcement published in the BOE in accordance with the provisions of Article 44 of Law 39/2015 of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP).

The responding party has not submitted allegations within the established period.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing claims submitted by a data subject and investigating, as appropriate, the reasons for such claims.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address requests for the exercise of the rights of the data subject under this Regulation.”

### III

#### Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

### IV

#### Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

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"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when any of the following circumstances apply:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this processing is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation under Union or Member State law applicable to the data controller;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical

purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or e) for the establishment, exercise, or defense of legal claims."

V

#### Conclusion

In the case analyzed here, the complaining party exercised their right to erasure, and after the period established in the aforementioned regulations had elapsed, their request received a response that this Agency deemed adequate, and the complaint was filed.

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Later, the claimant submitted a motion for reconsideration which, once analyzed, is deemed appropriate and gives rise to the current rights procedure.

In the present case, from the examination of the documentation provided by the claimant, it has been established that this party requested the deletion of their personal data and that the respondent has not responded to the requests made by this Agency, which means that no documentation has been examined that would allow for the verification that a proper response was provided to said request. It should be noted that this Agency has sent the documentation on three occasions so that the respondent could present allegations, documentation that has been returned by the Postal Service marked as ABSENT IN DELIVERY.

Consequently, it is appropriate to uphold the claim that gave rise to the present procedure, as the respondent has not demonstrated the duty to comply with the proper response to the exercise of a right in accordance with Article 12.4 of the LOPDGDD.

Having reviewed the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by B.B.B. considering that the provisions of Article 17 of the GDPR have been infringed and to urge A.A.A. with NIF C.C.C., to, within ten working days following the notification of this resolution, send to the claimant a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to B.B.B. and A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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